

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----	x	Index No.:
TIFFANY BARKSDALE,	:	<u>SUMMONS</u>
Plaintiff,	:	
-against-	:	
	:	
CITY OF NEW YORK, NEW YORK CITY	:	Plaintiff designates
POLICE DEPARTMENT, OFFICER RICHARD B.	:	Bronx County
DELAHANTY, KENNY E. VICTORIA, and "JOHN	:	as the place of trial
DOES 1-18," PERSONS EMPLOYED BY THE	:	
CITY OF NEW YORK,	:	The basis of venue is based on
Defendants.	:	CPLR § 504(3)
-----	:	
	x	

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York

March 31, 2021

/s/ Dejon C. Delpino
Dejon C. Delpino, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
TIFFANY BARKSDALE
26 Broadway, 3rd Floor
New York, New York 10004
(212) 500-3273

Defendants' Addresses:

CITY OF NEW YORK
Claim No.: 2020PI021241
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT, OFFICER RICHARD B. DELAHANTY, and
KENNY E. VICTORIA
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----	x	
TIFFANY BARKSDALE,		Index No.:
	:	
Plaintiff,	:	
	:	<u>VERIFIED COMPLAINT</u>
-against-	:	
	:	
CITY OF NEW YORK, NEW YORK CITY	:	
POLICE DEPARTMENT, OFFICER RICHARD B.	:	
DELAHANTY, KENNY E. VICTORIA, and "JOHN	:	
DOES 1-18," PERSONS EMPLOYED BY THE	:	
CITY OF NEW YORK,	:	
	:	
Defendants.	:	
-----	:	
	x	

TIFFANY BARKSDALE (hereinafter the "Plaintiff"), by her attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, OFFICER RICHARD B. DELAHANTY, OFFICER KENNY E. VICTORIA, and "JOHN DOES 1-18," PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violation of her rights under the Fourth, Fifth, Eighth, and Fourteenth Amendments of the United States Constitution, false arrest, and excessive force.

2. Plaintiff also brings a cause of action sounding in negligence alleging that by reason of the wrongful, negligent, and unlawful actions of the Defendants, as further detailed below, the Plaintiff, TIFFANY BARKSDALE, sustained serious injuries as defined in Section 5102 (d) of

the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in Section 5102 of the said Insurance Law.

PARTIES

3. At all relevant times, Plaintiff was and is a resident of New York County, City and State of New York.

4. At all relevant times, Defendant CITY OF NEW YORK (hereinafter “CITY”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) was and is an agency of Defendant CITY.

6. At all relevant times, Defendant CITY owned, operated, controlled, and managed the NYPD.

7. At all relevant times, RICHARD B. DELAHANTY, was an officer employed by the NYPD, hired, trained, supervised, and retained by Defendant CITY, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant CITY.

8. At all relevant times, KENNY E. VICTORIA, was an officer employed by the NYPD, hired, trained, supervised, and retained by Defendant CITY, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant CITY.

9. At all relevant times, the names of Defendants “John Does 1-19” are fictitious and are intended to be individuals engaged in law enforcement who were involved in the arrest and detention of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

10. Defendants RICHARD B. DELAHANTY, KENNY E. VICTORIA, and “John Does 1-19” are referred to herein as “Officers.”

11. At all relevant times, Defendants were involved in violating Plaintiff's rights and in so doing acted or failed to act, as alleged herein, under color of the statutes, ordinances, customs, policies, procedures, and/or rules of the State and City of New York, and within the scope of their employment.

12. Defendants, RICHARD B. DELAHANTY, KENNY E. VICTORIA, and John Does 1-19, are sued herein in both their individual and official capacities.

FACTS

13. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in her presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits. Therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

14. Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) with the CITY in accordance with General Municipal Law Section 50-e and 50-I on or about August 31, 2020. This Notice of Claim set forth the name and address of Plaintiff, her attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

15. At least thirty (30) days has passed since service of the Notice of Claim and payment of the claim has been either refused or neglected.

16. A General Municipal Law Section 50-h hearing was held on or about July 16, 2021.

17. This action is being commenced within one year and ninety days of the date on which all claims accrued subject to COVID-related tolling orders.

18. Plaintiff has complied with all conditions precedent to maintain this action.

19. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Arrest of June 2, 2020

20. On or about June 2, 2020, at or near the Southwest Corner of Findlay Avenue & East 170th Street in the County of Bronx, City and State of New York, at approximately 12:43 am, Plaintiff was a passenger in a 2015 Chrysler Sedan with three other occupants, Tynel Williams, Charlene Jackson, and Paul Patterson. Tynel Williams was operating the vehicle. Charlene Jackson was the owner of the vehicle.

21. Without warning, the 2015 Chrysler Sedan was rammed by an unmarked vehicle owned by CITY and NYPD and operated by an unidentified police officer in plain clothes.

22. Officers in plain clothes then approached the 2015 Chrysler Sedan with guns drawn and screamed at all the occupants ordering them to “freeze” and “get the fuck down or I’ll smoke you.”

23. Officers then yanked the doors of the vehicle open and pulled the four (4) occupants out of the vehicle. Officers also slashed the tire of the vehicle and broke the driver’s seat window.

24. Plaintiff was arrested, handcuffed, and detained without probable cause or justification, causing Plaintiff to be unlawfully detained for a period of approximately six (6) hours. Plaintiff was not read her rights, nor was she advised as to why she was being arrested despite making a request for this information.

25. Officers used excessive force to complete the arrest and intentionally assaulted plaintiff during the arrest, despite the fact that Plaintiff complied with all orders given by all officers and never resisted arrest.

26. Plaintiff, who is asthmatic, requested her inhaler as she was having difficulty breathing, police denied her inhaler for over 20 minutes.

27. Plaintiff was handcuffed in a cell for most of her detention. While in the holding cell, Plaintiff was denied water, the use of restroom, and medical attention.

28. It was later determined that plaintiff, as well as all other passengers of the 2015 Chrysler Sedan, were the victims of a misidentification because of officers' negligent, hasty, and irrational method of investigating a hit and run of a police officer by an unrelated person that occurred earlier that day.

29. Officers even issued a Summons to Tynel Williams, the driver of the 2015 Chrysler Sedan at the time of incident, for "leaving the scene of an accident."

30. Upon realizing their grave mistake, police later voided this summons and attempted to erase all evidence of Tynel Williams arrest to conceal their tortious conduct and intentional violation of the Civil Rights of Plaintiff and all other occupants of the 2015 Chrysler Sedan that evening.

31. It seems clear that in their "zeal" to catch someone who injured a police officer, the officers willfully, wantonly, and recklessly violated the civil rights of plaintiff who had committed absolutely no crime and had not even been near the scene of the hit and run those officers were investigating at the time the hit and run occurred.

32. Unfortunately, instead of owning up to their errors, Defendants continued a course of conduct meticulously designed to cover up their misconduct and further deprive Plaintiff of her

civil rights, even going so far as to fail to make a police accident report for the collision despite extensive damage to the 2015 Chrysler Sedan and significant injuries sustained by plaintiff as well as the other occupants of the vehicle.

33. As a result of the assault and the collision, Plaintiff sustained extensive injuries to her person, including but not limited to, her knees, back, and left ankle. The injuries to her left ankle required arthroscopic surgery and she continues to need medical care with respect to the injuries sustained because of this incident.

34. Despite severely injuring Plaintiff, officers denied plaintiff any medical treatment for the duration of her approximately six (6) hours of detention, thus causing further injury to Plaintiff and exacerbating the injuries Plaintiff already sustained because of the officers' actions during this incident.

35. Plaintiff's injuries have impacted her professionally as well and she has lost wages because of her injuries arising from this incident.

36. At all times relevant to this action, all Defendants acted intentionally, willfully, negligently, and/or with reckless disregard for and deliberate indifference to the clearly established rights of Plaintiff.

37. The wrongful acts of Defendant Officers during Plaintiff's arrest and imprisonment were the direct result of the failure of Defendants CITY and NYPD to properly hire, train, supervise, monitor, and discipline their officers, agents, employees and/or contractors.

38. The wrongful acts of Defendant Officers during Plaintiff's arrest and detention were taken pursuant to policies, practices, and/or customs developed, implemented, enforced, encouraged, and tolerated by Defendant CITY.

39. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses. Said injuries are irreversible and permanent.

40. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

STATE CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR NEGLIGENCE

41. The allegations set forth in paragraphs “1” through “40” inclusive are incorporated herein as if fully set forth.

42. That at all times herein mentioned, Plaintiff, TIFFANY BARKSDALE, was a passenger in a 2015 Chrysler Sedan motor vehicle.

43. That at all times hereinafter alleged, and upon information and belief, the Defendants, NYPD and CITY, owned and maintained a motor vehicle bearing New York State registration and operated and controlled by John Doe, a police officer in the course of her duties as an employee of NYPD and CITY.

44. That at all times hereinafter alleged, and upon information and belief, the Defendant, John Doe, a police officer in the course of her duties as an employee of NYPD and CITY operated, maintained, managed, and controlled a motor vehicle bearing New York State registration with knowledge, permission and consent of Defendants, NYPD and CITY.

45. That at all times hereinafter alleged, and upon information and belief, the Defendant, John Doe, a police officer in the course of his or her duties as an employee of NYPD and CITY operated a motor vehicle bearing New York State registration within the scope of his or her employment of Defendants, CITY

46. That at all times hereinafter mentioned, Southwest Corner of Findlay Avenue and East 170th Street, County of Bronx, City and State of New York, was and still is a public highway used extensively by the public in general.

47. That on June 2, 2020, at the aforesaid location, the vehicle operated by John Doe did come into contact with the 2015 Chrysler Sedan.

48. The aforesaid accident and the injuries resulting therefrom were due to the careless, reckless, and negligent manner in which the Defendants owned, operated, managed, maintained, and controlled the motor vehicles, as well as by the intentional conduct of the Defendants, without the Plaintiff in any way contributing thereto.

49. That by reason of the foregoing and the negligence of the Defendants, the Plaintiff, TIFFANY BARKSDALE, was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time physical pain and bodily injuries and became sick, sore, lame and disabled.

50. That by reason of the foregoing, the Plaintiff, TIFFANY BARKSDALE, was compelled to and did necessarily require medical aid and attention and did necessarily pay and become liable therefore for medicines and upon information and belief, the Plaintiff will necessarily incur similar expenses.

51. That by reason of the foregoing, the Plaintiff, TIFFANY BARKSDALE, has been unable to attend to her usual occupation in the manner required.

52. That by reason of the wrongful, negligent, and unlawful actions of the Defendants, as aforesaid, the Plaintiff, TIFFANY BARKSDALE, sustained serious injuries as defined in Section 5102(d) of the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in Section 5102 of the said Insurance Law.

53. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

54. That as a result of the foregoing, the Plaintiff, TIFFANY BARKSDALE, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS
FOR ASSAULT AND BATTERY

55. The allegations set forth in paragraphs “1” through “54” inclusive are incorporated herein as if fully set forth.

56. Over the course of Plaintiff’s arrest and detention, Defendant Officers made offensive bodily contact with Plaintiff.

57. This offensive bodily conduct was wrongful and unjustified under all of the circumstances present at the time.

58. Defendant Officers intended to make offensive bodily contact with Plaintiff.

59. Plaintiff did not consent to the offensive bodily contact and Defendant Officers’ actions caused her to fear for her physical safety.

60. Defendant Officers knew or should have known that this bodily contact constituted an assault and battery against Plaintiff.

61. Defendant Officers were acting within the scope of their employment when they made offensive bodily contact with Plaintiff.

62. Defendants CITY and NYPD are responsible and liable for the acts of Defendant Officers performed within the scope of their employment under the doctrine of *respondeat superior*.

63. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

64. The conduct of the Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard for the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

65. The allegations set forth in paragraphs "1" through "64" inclusive are incorporated herein as if fully set forth.

66. Acting within the scope of their employment, Defendant Officers engaged in extreme and outrageous conduct throughout the course of the arrest and detention of Plaintiff.

67. Defendant Officers caused Plaintiff to fear for her safety during the course of the aforesaid extreme and outrageous conduct.

68. Defendant Officers knew or should have known that the extreme and outrageous conduct in which they engaged would result in injury to Plaintiff and did, in fact, result in such injury.

69. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

70. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or in disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

71. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress, which had a disabling effect on Plaintiff.

72. Defendants CITY and NYPD are responsible and liable for the acts of Defendant Officers performed within the scope of their employment through the doctrine of *respondeat superior*.

73. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

74. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard for the rights of others and renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS CITY AND NYPD FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

75. The allegations set forth in paragraphs “1” through “74” inclusive are incorporated herein as if fully set forth.

76. Defendants CITY and NYPD failed to exercise reasonable care in hiring, training, retaining, and supervising Defendant Officers, thereby breaching their duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising of employees.

77. Defendants CITY and NYPD knew or and should have known of the dangerous propensities of the Defendant Officers to commit injurious acts of the type alleged herein.

78. As a direct and proximate result of the Defendants’ acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

79. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE

80. The allegations set forth in paragraphs “1” through “79” inclusive are incorporated herein as if fully set forth.

81. Defendant Officers had a special duty to refrain from using excessive force or causing offensive bodily contact during Plaintiff’s arrest and detention.

82. Defendants' acts and/or omissions in causing the aforementioned offensive bodily contact; using excessive force; negligently hiring, retaining, training, and supervising of its employees, officers, agents, and/or contractors; and their infliction of emotional distress were in breach of the duty of care owed to Plaintiff.

83. Defendants CITY, NYPD, and Officers acted negligently and in reckless disregard for her rights in assaulting and battering Plaintiff; using excessive force towards Plaintiff; intentionally and/or negligently inflicting emotional distress upon Plaintiff; failing to furnish medical care to Plaintiff, and failing to properly hire, train or supervise employees.

84. Defendant CITY is responsible and liable for the acts of Defendant Officers performed within the scope of their employment under the doctrine of *respondeat superior*.

85. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

86. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard for the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
FALSE ARREST/ FALSE IMPRISONMENT

87. The allegations set forth in paragraphs "1" through "86" inclusive are incorporated herein as if fully set forth.

88. Defendants Officers intended to cause the wrongful and unlawful prosecution of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

89. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of her liberty, and caused her to be taken into police custody, and charged with crimes she did not commit.

90. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful arrest and imprisonment of Plaintiff. Plaintiff was aware of such confinement by Defendants and did not consent to said confinement.

91. The aforementioned confinement was not privileged in any way and was without legal justification.

92. Plaintiff was thereafter caused to be incarcerated for approximately six (6) hours.

93. Defendants CITY is responsible and liable for the acts of Defendants Officers done within the scope of their employment under the doctrine of *respondeat superior*.

94. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

95. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR EXCESSIVE FORCE
PURSUANT TO 42 U.S.C. §1983

96. The allegations set forth in paragraphs “1” through “95” inclusive are incorporated herein as if fully set forth.

97. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

98. Plaintiff has a clearly established constitutional right to be free from physically abusive government conduct.

99. Plaintiff has a clearly established constitutional right to be free from cruel and unusual punishment.

100. Defendants CITY, NYPD, and Officers knew or should have known that intentionally ramming a car Plaintiff was a passenger in, throwing her to the ground, cursing at her, and threatening to murder her, in spite of the fact that she was not resisting arrest and did not pose a threat to Defendant Officers, would constitute a violation of her constitutional rights.

101. Defendants CITY, NYPD, and Officers knew or should have known that intentionally ignoring Plaintiff’s complaints of severe pain and physical distress would constitute a violation of her constitutional rights.

102. Accordingly, Defendants CITY, NYPD, and Officers knew or should have known that they had an obligation to attend to Plaintiff’s injuries after she began expressing pain and physical distress, and to cease restraining her in a manner that was physically harmful and/or abusive.

103. Defendants CITY, NYPD, and Officers nonetheless intentionally and/or in a grossly negligent manner rammed a car Plaintiff was a passenger in, threw her to the ground,

cursed at her, and threatened to murder her, manhandled her, denied her access to her inhaler and denied her medical care despite Plaintiff's complaints and obvious physical distress.

104. In doing so, Defendants CITY, NYPD, and Officers were deliberately indifferent to Plaintiff's aforementioned clearly established constitutional rights.

105. Defendants' actions and/or omissions were objectively unreasonable given the circumstances.

106. Defendant CITY knew or should have known that this was a serious widespread and ongoing problem within the NYPD of arrests that resulted in physical injury to non-violent and non-resisting arrestees, and that police officers (including Defendant Officers) routinely used unreasonable and unjustified excessive force when arresting and restraining individuals while simultaneously ignoring arrestees' complaints of physical distress or pain.

107. However, Defendant CITY maintained a policy of deliberate indifference to the rights of citizens to be free from unreasonable search and seizure; failed to promulgate and implement policies and procedures regarding proper use of restraints, methods of conducting an arrest, and care of persons in custody; failed to promulgate and implement policies and procedures to ensure that employees refrain from using excessive force during arrests; failed to appropriately discipline police officers who cause unjustified injury to arrestees, as well as those who supervise such officers; failed to establish and maintain a meaningful system for responding to complaints of pain or physical distress by individuals in police custody; failed to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; authorized, tolerated and ratified the misconduct of police officers; and failed to intervene when employees, officers, agents, and/or contractors violated well-established statutory and constitutional rights.

108. Defendant CITY knew or should have known that those failures would cause the violation of the constitutional rights of citizens who come in contact with the NYPD.

109. As a direct result of these failures, Plaintiff was subjected to excessive force and assault and battery.

110. By reason of their acts and omissions, all Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of her rights to be free from excessive force, physically abusive government conduct, and cruel and unusual punishment in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

111. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

112. The conduct of Defendants set forth above and complained of herein was so evil, malicious, and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others and renders the Defendant Officers liable to Plaintiff for punitive damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR FAILURE TO INTERVENE PURSUANT TO
42 U.S.C. §1983

113. The allegations set forth in paragraphs "1" through "112" inclusive are incorporated herein as if fully set forth

114. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

115. Plaintiff has a clearly established constitutional right to be free from physically abusive government conduct.

116. Plaintiff has a clearly established constitutional right to be free from cruel and unusual punishment.

117. During Plaintiff's arrest and detention, she was intentionally or in a grossly negligent manner subjected to physical abuse by the arresting officers.

118. It was objectively unreasonable and a violation of her clearly established rights for Plaintiff to be restrained in such an injurious manner given that she was not resisting and did not pose a threat to Defendant Officers.

119. Each of the Defendant Officers who did not personally arrest Plaintiff observed or was otherwise made aware that Plaintiff had been unjustifiably and falsely arrested and subjected to physical and mental abuse.

120. Each of these Defendant Officers had a realistic opportunity to prevent injury and harm to Plaintiff.

121. Each of these Defendant Officers knew or should have known that they had an affirmative duty to intervene to protect Plaintiff's constitutional rights from infringement by other law enforcement officials in their presence.

122. Defendant Officers nonetheless intentionally and/or in a grossly negligent manner failed to intervene to protect Plaintiff's rights and prevent injury once they became aware that Plaintiff was in severe pain and physical distress from having been battered about the body and pushed to the ground.

123. In doing so, Defendant Officers were deliberately indifferent to Plaintiff's aforementioned clearly established constitutional rights.

124. Defendant CITY knew or should have known that this was a serious widespread and ongoing problem within the NYPD of arrests that resulted in physical injury to non-violent and non-resisting arrestees, and that police officers (including Defendant Officers) routinely looked the other way and took no action when other police officers used excessive force and inflicted unnecessary physical injuries on arrestees in their presence.

125. However, Defendant CITY maintained a policy of deliberate indifference to the rights of citizens to be free from unreasonable search and seizure; failed to promulgate and implement policies and procedures regarding proper method of effectuating an arrest; failed to promulgate and implement policies or procedures requiring police officers to take affirmative action to prevent or stop rights violations by other officers; failed to appropriately discipline police officers who fail to intervene when other officers cause unjustified injury to arrestees or otherwise violate constitutional rights, as well as those who supervise such officers; failed to establish and maintain a meaningful system for responding to complaints of pain or physical distress by individuals in police custody; failed to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; authorized, tolerated and ratified the misconduct of police officers; and failed to intervene when employees, officers, agents, and/or contractors violated well-established statutory and constitutional rights.

126. Defendant CITY knew or should have known that those failures would cause the violation of the constitutional rights of citizens who come in contact with the NYPD.

127. As a direct result of these failures, Plaintiff was subjected to excessive force, and assault and battery.

128. By reason of their acts and omissions, Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of her rights to be free from excessive force, physically abusive government conduct, and cruel and unusual punishment in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

129. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

130. The conduct of Defendants set forth above and complained of herein was so evil, malicious, and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others and renders the Defendant Officers liable to Plaintiff for punitive damages.

AS AND FOR AN NINTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
FAILURE TO TRAIN PURSUANT TO 42 U.S.C. §1983

131. The allegations set forth in paragraphs "1" through "130" inclusive are incorporated herein as if fully set forth.

132. Defendant CITY had an obligation to provide training to employees regarding proper method of effectuating an arrest; the affirmative duty to intervene to stop all violations of constitutional rights by other law enforcement officials in an officer's presence; the constitutional right to be free from unreasonable search and seizure; the proper protocol for handling complaints

or observations of pain or physical distress by individuals in police custody; and the requirement that all physical force towards arrestees must be proportional and justified.

133. Defendant CITY was deliberately indifferent to its obligation to provide training to their employees on the subjects listed above.

134. Defendant CITY knew or should have known that its failure to provide said training would endanger the health, safety, and well-being of citizens and lead to constitutional violations.

135. In failing to provide adequate training, Defendant CITY was deliberately indifferent to the rights of citizens to be free from unreasonable search and seizure, cruel or unusual punishment, and physically abusive government conduct.

136. As a direct result of these failures, Plaintiff was subjected to unreasonable search and seizure, assault and battery, and excessive force, in violation of her rights.

137. By reason of their acts and omissions, Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of her rights to be free from excessive force, physically abusive government conduct, and cruel and unusual punishment in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

138. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including, but not limited to, nerve damage, pain and suffering, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

WHEREFORE, Plaintiff demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, OFFICER RICHARD B. DELAHANTY,

KENNY E. VICTORIA, and “JOHN DOES 1-18,” PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
March 31, 2021

/s/ Dejon C. Delpino
Dejon C. Delpino, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
TIFFANY BARKSDALE
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am an associate of Lebedin Kofman LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman LLP maintains its offices.

Dated: New York, New York
March 31, 2021

/s/ Dejon C. Delpino
Dejon C. Delpino, Esq.